

pertain to the elements of a fraudulent transfer. Instead, plaintiff impermissibly attaches additional unauthenticated exhibits to the memorandum of points and authorities with no request for judicial notice. To the extent that these exhibits are not duplicative of the 38 exhibits already attached to the complaint, plaintiff may attach them to any amended complaint to ensure they are considered.

The general demurrer is sustained with respect to counts 1-9 and 12. Because this is the first challenge to the pleading, and since plaintiff appears to be capable of further clarifying the grounds for his claims, leave to amend is granted.

B. Count 11 (Injunctive Relief)

Plaintiff seeks an injunction to prevent “any other actions” by “Defendants” which have the ability to harm his recovery, as well as imposition of a constructive trust with respect to the fraudulently conveyed assets. SQV and ECI demur, arguing the count is a remedy, not a cause of action. The Court concurs that no cause of action is stated. To the extent plaintiff seeks to enjoin any actions by SQV or ECI, it is not clear and no facts are offered in support of any injunctive relief against them.

The general demurrer is sustained with respect to count 11. Because this is the first challenge to the pleading, leave to amend is granted.

C. Count 22 (Declaratory Relief)

Citing Code of Civil Procedure, § 1060, SQV and ECI argue no declaratory relief cause of action is stated against them. The Court agrees that none of the allegations in this count specifically refers to SQV or ECI. As set forth in the demurrer, any declaratory relief as to plaintiff’s note would relate only to the parties to that note, not demurring defendants.

Accordingly, the demurrer is sustained with respect to the cause of action for declaratory relief. Leave to amend is granted.

13. 9:00 AM CASE NUMBER: C25-01714

CASE NAME: OCEAN VIEWS LLC/ BRANDON ROWE VS. DISCOVERED USA, INC

***HEARING ON MOTION IN RE: LEAVE TO AMEND INITIAL COMPLAINT**

FILED BY: OCEAN VIEWS LLC/ BRANDON ROWE

TENTATIVE RULING:

Before the Court is Plaintiffs Ocean Views LLC and Brandon Rowe’s Motion for Leave to Amend Initial Complaint (“Motion”).

Plaintiffs’ Motion is **granted** as discussed below.

Factual Allegations and Procedural Background

Plaintiffs filed their initial complaint on June 16, 2025, alleging a single cause of action for breach of contract against Defendant Discovered USA, Inc. Mr. Rowe was initially proceeding in pro per. Discovered USA filed its Answer on July 28, 2026.

On November 3, 2025, Plaintiffs filed a Substitution of Attorney indicating the Plaintiffs were now represented by counsel. Plaintiffs filed the instant motion for leave to amend on February 23, 2026.

The Proposed FAC seeks to add two new defendants: Samba Yarlagada and Charles Pankey. It also adds several causes of action, now alleging: (1) Breach of Contract (Discovered USA); (2) Breach of Fiduciary Duty (Yarlagada and Pankey); (3) Breach of Implied Duties of Good Faith and Fair Dealing (All Defendants); and (4) Negligent Misrepresentation (All Defendants).

Defendants oppose the Motion.

Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*)

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) “Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Ibid.* quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Currently, there is no trial date. The next CMC is scheduled for November 9, 2026.

Analysis

Defendant appears to make two general arguments as to why Plaintiffs’ request for leave to amend should be denied: (1) futility of the proposed amendment; and (2) prejudice to the Defendants.

Futility of Amendment

Defendant argues that the proposed amendment would be futile as it fails to properly plead (and arguably cannot properly plead) the new causes of action. It also argues that this Court is not the proper venue for the action even if such claims could be properly asserted.

Defendant cites *Mac v. Minassian* (2022) 76 Cal.App.5th 510 in support of its position. There, a motion for leave to file a fifth amended complaint was filed the day **after** trial. (*Id.* at 515.) The proposed amended complaint proposed to add back parties that had been dismissed in the third amended complaint. (*Ibid.*) The court denied the motion, but then “effectively ignores its own ruling because it relied on the fifth amended complaint for its decision and judgment” against one of the parties that had been dismissed. (*Id.* at 518.)

The court of appeal determined the trial court abused its discretion in so ruling. It noted that “California courts have denied leave to amend where the proposed amendment to the complaint is **during or after trial**, and the amendment would require the defendant to have litigated or acted differently to assert his rights before and at trial.” (*Id.* at 519 emphasis added.) The current motion is made well before a trial date has even been set. As such, *Mac* is distinguishable.

Defendant’s citation to *Phifer v. Sacramento Hous & Redevelopment Agency*, 2009 U.S. Dist. LEXIS 81662 (2002) is likewise off point. There, plaintiff sought “leave to amend pursuant to Federal Rules of Civil Procedure 15.” (*Id.* at *3.) Discussions of federal procedure have no bearing on state court procedures.

It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.) However, “the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co.*, *supra*, 213 Cal.App.3d at 1048 quoting *California Casualty Gen. Ins.*, *supra*, 173 Cal.App.3d at 281.)

This appears especially appropriate where Defendants claim that this Court is not the proper venue for this matter. If that is correct, that issue should be properly raised and fully briefed by the parties so the Court can determine whether this matter should be transferred to another venue.

To the extent Defendant believes the new causes of action are without merit, or that this Court is not the proper venue for this proceeding, it can demur or move to transfer venue. Those issues, however, are more properly addressed when fully briefed and not in an opposition to a motion for leave to amend.

Prejudice

“Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley*, *supra*, 212 Cal.App.4th at 1159; see also *Mesler*, *supra*, 39 Cal.3d at 296-297.)

Defendant argues that it would have acted differently – e.g. by filing a demurrer and/or contesting venue – if the allegations in the proposed FAC were contained in the original complaint. This argument does not support denial of leave to amend. Once the proposed amended complaint is filed, Defendant(s) will be free to raise all those arguments. As noted above, there is no trial date, and this case is still in its infancy being less than a year old.

“In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial. ... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, *supra*, 212 Cal.App.4th at 1159.)

Defendant has failed to show any cognizable prejudice it would suffer if Plaintiffs are allowed to file

their proposed amended complaint.

Conclusion

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan*, supra, 172 Cal.App.2d at 530.) It is also “error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Ibid.*)

Plaintiffs’ motion for leave to amend is **granted**. Plaintiffs shall file the First Amended Complaint within 10 days of service of notice of entry of this order.

**14. 9:00 AM CASE NUMBER: C25-02623
CASE NAME: LOGAN WILSON VS. CONTRA COSTA COUNTY,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUNTY,
*TENTATIVE RULING:***

Defendant Contra Costa County’s demurrer is **overruled as to cause of action one and sustained with leave to amend as to cause of action three**. Plaintiff has ten days from the notice of entry of this order to file a first amended complaint.

Plaintiff was injured when he fell 16.3 feet off a pedestrian bridge. The bridge railing did not meet minimum height requirements for safety and the side Plaintiff fell from lacked any guardrail. The bridge is privately owned and located immediately next to Hap Magee Ranch Park in Danville. There was no signage, fencing, barriers or other warnings to alert Plaintiff that he was leaving the park or that the bridge presented hazards. (Comp. ¶1.)

Plaintiff alleges that the park was jointly owned and operated by Contra Costa County and the Town of Danville, which are alleged to be public entities. (Comp. ¶¶1, 5.) The bridge was owned, operated and maintained by Ludden Gerald Francis, Watson Nancee and the Gerald F. Ludden and Nancee Watson Trust. (Comp. ¶1.)

Plaintiff sued for (1) dangerous condition of public property (public entity defendants), (2) premises liability (private defendants) and (3) negligence (all defendants). The County filed this demurrer to causes of action one and three, arguing that the facts alleged are insufficient to state a cause of action under Code of Civil Procedure section 430.10(e).

Dangerous Condition of Public Property (c/a 1)

The County argues that the dangerous condition of public property claim fails because (1) the County did not own or control the bridge and (2) the County is immune under Government Code section 830.2.